

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 25, 2019

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, and Jeff White. Absent: Dicky Shanor. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. White, and pursuant to support received by Mr. Case and Mr. Roybal, Agenda Item #12 (a) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on November 12, 2019. Motion (per Consent Agenda) carried.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.2 Planned Development – Regulating Plan or Development Master Plan, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District of the Unified Development Code, amending Ordinance No. 3841 by modifying certain standards of the adopted district, Planned Unit Development (PUD), for Lots 1-3, Block 1, Lots 1-4, Block 2, (less that portion platted to Pointe Plaza, 2nd Filing), and Lots 1-2, Block 3, Pointe Plaza; a portion of Lot 2, Block 1, Pointe Plaza, 2nd Filing; Lots 4-23, Block 1, Pointe Plaza, 3rd Filing; all of Point Plaza 4th Filing; and all of Pointe Plaza, 5th Filing, Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Gardenia Drive and Powderhouse Road) Reporting for Public Services Committee, Dr. Rinne moved to approve on second reading with Planning Commission recommendations, seconded by Mr. Cook. Dr. Rinne provided clarification relating to the Planning Commission’s recommendation to approve with allowing the sign exception to be allowed within the entire Point Plaza instead of just an exception for the Delta Dental property. Joe Patterson, Homes by Guardian, requested consideration to limit the exception for the Delta Dental property. Patti Guzman, Delta Dental, advised the corporation is mandated by sign requirements and the exception would allow them to comply. Discussion included a possible amendment on third reading of the ordinance to restrict the exception to the requesting party only instead of the entire Point Plaza property. Motion carried. Voting “yes” – all members of the governing body present.

[CA] RESOLUTION – Directing all revenue from City of Cheyenne Contract No. 5902 to be split evenly between the City of Cheyenne, Solid Waste Enterprise Fund, the Board of Public Utilities, and the newly established Belvoir Ranch Recreation Special Revenue Fund. Motion (per Consent Agenda) carried. (#6023)

RESOLUTION – Certifying the East Dell Range Boulevard/US 30 Corridor Study – referred to Public Services Committee. Dr. Rinne moved to adopt, seconded by Mr. White. Dr. Rinne moved amend page 2, 6th paragraph to read “That, the City of Cheyenne Governing Body hereby certifies the East Dell Range Boulevard/U.S. 30 Corridor Study” dated September 2019, seconded by Mr. Roybal. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Mr. Cook voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Mr. Cook voting “no”. (#6024)

[CA] RESOLUTION – Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$34,137.07 pursuant to Wyoming Statute §16-4-502 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Certifying the Interim Cheyenne Area Master Transportation Plan – referred to Public Services Committee. (Sponsor – Dr. Rinne)

Preliminary Plat for Alliance Addition, 4th Filing, a replat of a portion of Lot 1, Block 1, Alliance Addition, Cheyenne, Wyoming (located at the northwest corner of the intersection of Ridge Road and Jackson Street). Dr. Rinne moved to acknowledge the Planning Commission’s recommendation to approve with staff conditions #1-3, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present.

2019-2020 Collective Labor Agreement between the City of Cheyenne and Cheyenne Firefighters, Local Union No. 279, International Association of Firefighters (Postponed from November 12, 2019). Reporting for Finance Committee, Mr. White moved to approve, seconded by Mr. Luna. Mr. White moved to amend Section 17, “Hours of Work” and Section 21, “Classification of Employment and Basic Wages” as approved by the City Attorney’s Office dated November 18, 2019, seconded by Mr. Luna. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#7107)

Land Purchase and Sale Agreement between the City of Cheyenne and Victory Real Estate Management, LLC, for the purchase of real property described as a portion of Lot 1, Block 1, P.A.S. Subdivision, City of Cheyenne, Laramie County, Wyoming, for the appraised value of \$329,630.00, for economic development purposes (General Fund) (Postponed from November 12, 2019). Mr. White moved to approve in an amount not to exceed \$329,630.00, seconded by Mr. Case. Mr. White moved to postpone to December 9, 2019, seconded by Dr. Rinne. Joe Dougherty requested additional information relating to abatement and remediation expenses and opposed the proposed postponement. Motion to postpone carried. Voting “yes” – all members of the governing body present.

Minimum Revenue Guarantee Payment Agreement between the City of Cheyenne and the Cheyenne Regional Air Service Focus Team (CRAFT) for payments to Sky West Airlines for providing scheduled flight services between Cheyenne, Wyoming, and Dallas/Fort Worth, Texas (General Fund Reserves). Mr. White moved to approve in an amount not to exceed \$623,501.52, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present. (#7108)

[CA] Grant Award Agreement with the State of Wyoming Office of Homeland Security for a grant from the U.S. Department of Homeland Security (DHS), FEMA, Grant Programs Directorate, SHSP Grant Fiscal Year 2019 in the amount of \$102,434.00 for the Cheyenne Regional Response Team #7 (DHS Grant). Motion (per Consent Agenda) carried. (#7109)

[CA] Professional Services Agreement between the City of Cheyenne and Trihydro Corporation, Laramie, WY, for the Subsurface Methane Investigation at the Happy Jack Landfill (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$39,979.00). (#7110)

[CA] Professional Services Agreement between the City of Cheyenne, and C2R Landfill Equipment & Service Environmental Systems, Huffman, Texas, for the purchase and installation of two pumps and control panels for leachate wells NT-3 and NT-4 at the Happy Jack Landfill (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$39,695.00). (#7111)

[CA] Telecommunications Right-of-Way License and Use Agreement between Advanced Communications Technology, Inc., Sheridan, WY, and the City of Cheyenne (revenue to the city). Motion (per Consent Agenda) carried. (#7112)

[CA] Contract Modification #2 to Contract #6625 between the City of Cheyenne and Western Research and Development, Ltd., for additional design services for the On-Call Traffic Engineering Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$36,398.10). (#6625)

[CA] Contract Modification #1 to Contract #7083 between the City of Cheyenne and STC Construction Company, Cheyenne, for the 2019 Wearing Course Project. Motion (per Consent Agenda) carried. (#7083)

[CA] Contract Modification #2 to Contract #6885 between the City of Cheyenne and Simons Contractors, Cheyenne, for the 2018 Mountain Road and 20th Street Pavement Rehabilitation project. Motion (per Consent Agenda) carried. (#6885)

[CA] Consideration of Bid #S-6-20 for a contract between the City of Cheyenne and Evergreen Tennis Courts, Inc., Loveland, CO, for the Jaycee Park Tennis Court Asphalt Overlay and Resurfacing Project (Recreation Mill Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$95,000.00). (#7113)

[CA] Bar and grill liquor license application filed with the City Clerk's office for Goalz DH Cheyenne, WY LLC d/b/a Dog Haus, 3838 Atkin St., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Voucher Report. There were no comments or discussion related to the voucher report.

Revenue Report. Pat Crank, Representing Cheyenne Frontier Days (CFD), requested consideration for the City to stop charging CFD and other entities for additional services by the Cheyenne Fire & Rescue and Police Departments during events. He suggested the city build the budget to accommodate the extra expenses associated with additional security and services and adjust staff accordingly. Mayor Orr provided information relating to staffing restraints that have been placed on the number of full-time employees the city is allowed to hire by the governing body and reported on budgetary issues the city faces with respect to staffing levels. Mayor Orr explained that the city researched how other municipalities handle large events and explained multiple events are charged for the necessary additional services.

Under other business: Kris Jones, City Clerk, explained that the contract modification to Contract #7026 with Simon Contractors in the amount of \$579,892.25, was reconsidered at the October 28th meeting of the governing body and was back before the governing body at their November 12th meeting for consideration. She explained that the item, because it had been reconsidered, was before the governing with a motion and second and advised a vote was not taken. She further explained that for procedural and record keeping purposes, the governing body needs to record a vote on the item. Mayor Orr called for a vote and the motion to approve failed. Voting "no" all members of the governing body present.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:42 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
December 6, 2019